



महाराष्ट्र शासन
Government of Maharashtra
पशुसंवर्धन आयुक्तालय, महाराष्ट्र राज्य,

Commissionerate of Animal Husbandry, Maharashtra State,

स्पायसर मेमोरिअल कॉलेज समोर, औंध, पुणे: ४११००७.

Opp. Spicer Memorial College, Aundh, Pune: 411 007

E-mail : cah.disectrl-mh@gov.in cah.diseasecontrol@gmail.com

Teles: 020-25690480/81/85

Fax No : 020-25690489

Extn No: 241, 242, 239

क्र. एस.एल.टी/ १६ / २५६४-३३२६/२०१९, पसं-१२, पुणे. दि. २०/०३/२०१९

प्रति,

मा. जिल्हाधिकारी (सर्व)

तथा अध्यक्ष जिल्हा स्तरीय प्राणी क्लेष प्रतिबंधक सोसायटी

विषय: केंद्रशासनाच्या प्राण्यांना क्रुरतेने वागविण्यास प्रतिबंध करण्याबाबत अधिनियम, १९६० अंतर्गत पाळीव प्राणी दुकान नियम २०१८ आणि श्वान प्रजनन व विपणन नियम, २०१७ चे अंमलबजावणी बाबत.

संदर्भ:- १) केंद्रशासनाचे राजपत्रातील अधिसूचना दि. २३/०५/२०१७

२) केंद्रशासनाचे राजपत्रातील अधिसूचना दि. ०६/०९/२०१८

३) या कार्यालयाचे पत्र क्र. एस.एल.टी/कायदे/१८३/५७४९-५८५९/२०१८, पसं-१२, पुणे. दि. २१/०५/२०१८

४) या कार्यालयाचे पत्र क्र. एस.एल.टी/कायदे/१९९/१३४९०-६०२/२०१८, पसं-१२, पुणे. दि. ११/१०/२०१८

उपरोक्त विषयाचे अनुषंगाने कळविण्यात येते की, केंद्र शासनाच्या 'प्राण्यांना क्रुरतेने वागविण्यास प्रतिबंध अधिनियम, १९६०' या कायद्या अंतर्गत केंद्रशासनाने संदर्भ क्र. १ अन्वये 'श्वान प्रजनन व विपणन नियम २०१७' व संदर्भ क्र. २ अन्वये 'पाळीव प्राणी दुकान नियम, २०१८' अधिसूचित केलेले आहेत. सदर नियम राज्यामध्ये लागू आहेत. त्या अनुषंगाने या कार्यालयाने संदर्भ क्र. ३ व ४ वरील पत्राद्वारे आपणास अवगत केले आहे. सदर नियमांतील तरतूदी नुसार राज्यातील पाळीव प्राण्यांची दुकाने तसेच श्वान प्रजनन व विपणन केंद्रांची महाराष्ट्र प्राणी कल्याण मंडळाकडे नोंदणी करणे बंधनकारक आहे.

सदर नियमांची अंमलबजावणी योग्यरित्या होत नसल्याबाबत तसेच, विनानोंदणी अवैधरित्या पाळीव प्राणी दुकाने तसेच श्वान प्रजनन व विपणन केंद्रे राज्यात सुरु असल्याबाबत मा. उच्च न्यायालय मुंबई येथे क्र. २०/२०१९ शिवराज पाटणे विरुद्ध महाराष्ट्र शासन व इतर अन्वये जनहित याचिका दाखल करण्यात आली आहे.

या अनुषंगाने आपणास याद्वारे कळविण्यात येते की, पाळीव प्राणी दुकान नियम, २०१८ व श्वान प्रजनन व विपणन नियम २०१७ अन्वये व्यक्ती/संस्थांची नोंदणी महाराष्ट्र प्राणी कल्याण मंडळाकडे करणे बंधनकारक आहे. यास्तव खालिलप्रमाणे कार्यवाही करणे आवश्यक आहे.

पाळीव प्राणी दुकान नियम, २०१८ अन्वये संबंधितांचा अर्ज प्राप्त झाल्यावर ८ दिवसाचे आत त्यांचा अर्ज महाराष्ट्र प्राणी कल्याण मंडळाकडे पाठविण्यात यावा. अर्ज परिपूर्ण असल्यास महाराष्ट्र प्राणी कल्याण मंडळ त्यांची रितसर नोंदणी करून जिल्हास्तरीय प्राणी क्लेष प्रतिबंधक समितीला कळवेल. त्यानंतर ३ महिन्यांचे आत जिल्हास्तरीय प्राणी क्लेष प्रतिबंधक समिती मार्फत या संस्थांची पाळीव प्राणी दुकान नियम, २०१८ चे अनुषंगाने तपासणी करून तसा अहवाल, महाराष्ट्र प्राणी कल्याण मंडळाकडे तात्काळ पाठविण्यात यावा.

श्वान प्रजनन व विपणन नियम २०१७ अन्वये संबंधितांचे अर्ज प्राप्त झाल्यावर ८ दिवसाचे आत जिल्हास्तरीय प्राणी क्लेष प्रतिबंधक समिती मार्फत प्रथम या संस्थांची श्वान प्रजनन व विपणन नियम २०१७ चे अनुषंगाने तपासणी करून तसा अहवाल, महाराष्ट्र प्राणी कल्याण मंडळाकडे पाठविण्यात यावा. अहवाल परिपूर्ण असल्यास महाराष्ट्र प्राणी कल्याण मंडळ त्यांची रितसर नोंदणी करेल.

वरिल नियमा अंतर्गत तपासणी करण्यासाठी खालील प्रमाणे समिती गठीत करण्यात यावी.

१. जिल्हास्तरीय प्राणी क्लेष प्रतिबंधक समिती चे सचिव किंवा त्यांचे प्रतिनिधी
२. प्राणी क्लेष प्रतिबंधक समिती चे १ अशासकिय सदस्य
३. पाळीव प्राणी दुकान/श्वान प्रजनन व विपणन केंद्र ज्या कार्यक्षेत्रामध्ये आहे तेथील पशुधन विकास अधिकारी

या समितीने तपासणी करून त्यांचे शिफारसीसह अहवाल सचिव, महाराष्ट्र प्राणी कल्याण मंडळ, पशुसंवर्धन आयुक्तालय, औंध, पुणे-६७ येथे पाठवावेत. विना नोंदणी कोणतेही पाळीव प्राणी दुकान किंवा श्वान प्रजनन व विपणन केंद्र कार्यरत राहणार नाही याची दक्षता घ्यावी ही विनंती.

सोबत श्वान प्रजनन व विपणन नियम २०१७ तसेच पाळीव प्राणी दुकान नियम, २०१८ या नियमांची प्रत जोडली आहे.

(लक्ष्मीनारायण मिश्रा, भा.प्र.से.)
आयुक्त पशुसंवर्धन,
महाराष्ट्र राज्य, औंध पुणे-६७.

प्रत माहिती व पुढील कार्यवाहीसाठी

१. मा. विभागीय आयुक्त (सर्व)
२. पोलीस आयुक्त (सर्व)
३. पोलीस अधिक्षक (सर्व)
४. मुख्य कार्यकारी अधिकारी जिल्हा परिषद (सर्व)
५. जिल्हा पशुसंवर्धन उपआयुक्त (सर्व)
६. आयुक्त, महानगरपालिका (सर्व)

७. प्रादेशिक पशुसंवर्धन आयुक्त, (सर्व)
८. मुख्याधिकारी, नगरपालिका/नगरपरिषद (सर्व)
९. जिल्हा पशुसंवर्धन अधिकारी, जिल्हा परिषद, (सर्व)

प्रत माहितीस्तव

१. मा. प्रधान सचिव (पदुम), महाराष्ट्र शासन, कृषि, पशुसंवर्धन, दुग्धव्यवसाय विकास व मत्स्यव्यवसाय विभाग, मंत्रालय, मुंबई-३२
२. मा. प्रधान सचिव, महाराष्ट्र शासन, नगर विकास विभाग, मंत्रालय, मुंबई-३२
३. मा. प्रधान सचिव, महाराष्ट्र शासन, महसूल विभाग, मंत्रालय, मुंबई-३२
४. मा. प्रधान सचिव, महाराष्ट्र शासन, ग्राम विकास विभाग, मंत्रालय, मुंबई-३२
५. मा. अध्यक्ष, महाराष्ट्र प्राणी कल्याण मंडळ, पशुसंवर्धन आयुक्तालय, औंध, पुणे-६७

MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE

NOTIFICATION

New Delhi, the 23rd May, 2017

G.S.R.496(E).—Whereas the draft Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2016 were published, as required under sub-section (1) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), vide the Ministry of Environment, Forest and Climate Change notification number G.S.R. 19(E), dated the 11th January, 2017 in the Gazette of India, Extraordinary, Part-II, Section 3, Sub-section (i), dated the 11th January, 2017 inviting objections and suggestions from all persons likely to be affected thereby before the expiry of thirty days from the date on which copies of the Gazette containing the said notification were made available to the public;

And whereas the copies of the said Gazette were made available to the public on the 11th January, 2017;

And whereas objections and suggestions received from the public have been considered by the Central Government;

Now, therefore, in exercise of the powers conferred by sub-sections (1) and (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), the Central Government hereby makes the following rules, namely:—

1. Short title and commencement.— (1) These rules may be called the Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2017.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions.— (1) In these rules, unless the context otherwise requires,—

(a) “Act” means the Prevention of Cruelty to Animals Act, 1960 (59 of 1960);

(b) “Animal Welfare Organisation” means a welfare organisation for animals recognised by the Board, and includes a Society for Prevention of Cruelty to Animals established in any district under the Prevention of Cruelty to Animals (Establishment and Regulation of Societies for Prevention of Cruelty to Animals) Rules, 2001 made under the Act;

(c) “breeder” means an individual or group of persons who own dogs of specific breeds for breeding and sale of dogs and pups, and includes boarding kennel operator, intermediate handler and trader;

(d) “boarding kennel operator” includes an individual or group of persons that keep pet dogs and pups for temporary housing in kennel or any other establishment;

(e) “carrier” means the operator of any airline, aircraft, railroad, motor carrier, shipping line or other enterprise which is engaged in the business of transporting animals on hire;

(f) “certificate of registration” means a certificate of registration issued under these rules;

(g) “dog” includes a pup;

(h) “intermediate handler” means any person who receives interim custody of animals during the course of their sale or purchase;

(i) “inspector” means a person authorised in writing by the State Animal Welfare Board:

Provided that any person who is or has been a pet shop owner or breeder, or is related to a pet shop owner or breeder, shall not be authorised as an inspector under these rules;

(j) “State Board” means the State Animal Welfare Board constituted, in a State, by the State Government;

(k) “trader” includes an individual or group of persons who sells dogs and pups acquired from any breeder or pet shop, or from his or their own breeding facility, or imported for sale, or acquired in any other manner;

(l) “pet shop” means a shop, place or premises, including any shop, place or premises in a weekly or other market, where pet animals are sold or housed, kept or exhibited for sale, or where any retail or whole-sale business involving the selling or trading of pet animals are carried out;

(m) “Schedule” means a Schedule annexed to these rules;

(n) “Society for Prevention of Cruelty to Animals (SPCA)” means a SPCA established under the Prevention of Cruelty to Animals (Establishment and Regulation of Societies for Prevention of Cruelty to Animals) Rules, 2001 made under the Act”;

(o) “veterinary practitioner” means a veterinary practitioner registered under the provisions of the Indian Veterinary Council Act, 1984 (52 of 1984).

(2) Words and expressions used in these rules and not defined, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3. Prohibition of breeding of dogs without registration.— (1) No breeder shall carry on or continue any breeding activity or own or house dogs for breeding and sale of dogs and pups, unless the breeder has obtained a certificate of registration in respect of the establishment being used or intended to be used by him for breeding or housing the dogs for breeding, from the State Board in accordance with these rules.

(2) Every breeder shall prominently display the certificate of registration in the establishment.

(3) Every breeder shall keep the establishment used by him for breeding or for housing the dogs to be bred or sold, open for inspection by a person authorised in writing by the State Board.

4. Registration of breeder and establishment.— (1) A person shall not be eligible for registration as breeder under these rules unless,—

(a) in the case of an individual, he has attained the age of majority and is of sound mind and is not disqualified from contracting under any law for the time being in force; and

(b) in any other case, the person is a corporation, company or other association of persons duly registered in accordance with any law for the time being in force.

(2) An application for registration of breeder in respect of an establishment used or intended to be used by him for breeding or housing the dogs for breeding, shall be made to the State Board in Form-I appended to the First Schedule providing all information required therein and accompanied with a non-refundable fee of five thousand rupees.

(3) A breeder shall be required to make separate applications for every establishment being used or intended to be used for breeding or housing dogs for breeding.

(4) The State Board shall, on receipt of an application for registration under sub-rule (2), cause the establishment of the breeder to be inspected by a team comprising of an authorised representative of the State Board and a veterinary practitioner.

(5) The team referred to in sub-rule (4) shall after making inspection submit, to the State Board, a report signed by all the members of the team.

(6) The State Board, after considering the report of the team submitted under sub-rule (5) and on being satisfied that the breeder and the establishment complies with the requirements specified under these rules, register the breeder in respect of that establishment and issue certificate of registration in Form-II appended to the First Schedule and the State Board shall, depending upon the available space, facilities and manpower in the establishment, fix the maximum holding capacity for each dog breeding establishment to avoid overcrowding.

(7) The State Board shall not register the breeder in respect of an establishment, if—

(a) the information submitted by the breeder has been found to be false or the applicant has made material and deliberate misstatements in the application or provided falsified or fabricated records to the State Board; or

(b) the breeder has, at any stage prior to submission of his application for registration, been convicted of any offence under the Act, or the Wildlife (Protection) Act, 1972 (53 of 1972) or for any offence relating to animals under any other law for the time being in force; or

(c) the breeder has refused to allow the inspection team free and unimpeded access to the establishment; or

(d) the breeder does not meet the requirements laid down under rule 6.

(8) Where the State Board does not register the breeder in respect of an establishment, the State Board shall inform the breeder in writing the reasons thereof within thirty days from the date of receipt of application by the State Board.

(9) A certificate of registration issued by the State Board shall be valid for a period of two years, and may be renewed upon an application being made to the State Board together with a fee of five thousand rupees.

(10) A certificate of registration issued under these rules shall be non-transferable.

(11) The establishments registered with the Committee, referred to in section 15 of the Act, for the Purpose of Control and Supervision of Experiments on Animals, and coming under the purview of the Breeding of and Experiments on Animals (Control and Supervision) Rules, 1998 for the purpose of experiments, breeding and trading of animals, shall be exempted from registration under these rules.

5. Renewal of registration.— (1) An application for renewal of registration shall be made, at least thirty days prior to the expiry of the registration, to the State Board in the Form-I appended to the First Schedule and the provisions of rule 4 shall *mutatis mutandi* apply.

(2) The State Board shall not renew the registration of a breeder in respect of an establishment, unless the State Board, after considering the report of the team, referred to in sub-rule (4) of rule 4, is satisfied that the breeder and the establishment complies with the standards and requirements specified in rule 6 and the Second Schedule.

6. Requirements to be met by breeders and establishments used for breeding or housing dogs for breeding.— Every breeder shall comply with the standards and requirements set out in the Second Schedule.

7. Inspection of establishment.— (1) The State Board may, either upon receipt of a complaint or for any other reason, inquire into or cause any establishment of a breeder to be inspected by an inspector.

(2) The inspector shall, on producing his authority, have power to—

(a) enter into the establishment at any reasonable time and access to all areas within the establishment and all animals, and records, to ascertain whether the requirements of these rules are being complied with;

(b) take pictures, record videos, and make copies of the records.

(3) An establishment of a breeder registered under these rules shall be inspected at least once each year.

(4) The inspector shall submit to the State Board a report in writing of the inspection.

(5) If the State Board, after considering the report referred to in sub-rule (4) is of the opinion that any requirements of these rules are contravened by the breeder, it may, after giving a copy of the report to the breeder and an opportunity to show cause, revoke the registration of the breeder in respect of that establishment and communicate to him the reasons thereof in writing.

8. Conditions for sale.— (1) Every breeder shall ensure that—

(a) pups less than eight weeks in age are not sold;

(b) dogs over six months in age are not sold without first being sterilised, unless they are being sold to another licensed breeder;

(c) dogs and pups are not sold for use in experiments, unless the purchaser is a breeder registered with the Committee for the Purpose of Control and Supervision of Experiments on Animals constituted under section 15 of the Act;

Provided that the sale of pups by the purchaser shall only be made to a facility registered with the Committee for the Purpose of Control and Supervision of Experiments on Animals;

(d) only dogs in good health, that have been provided the medical inoculations, are sold;

(e) each pup sold is micro-chipped and complete record of treatment and vaccination is maintained;

(f) pups are not displayed in public places for the purpose of immediate sale; and

(g) receipt for sale is provided to each purchaser and copy thereof is retained with the micro-chip number of the pup sold and name, address and phone number of the purchaser.

(2) The breeder shall furnish to the purchaser in writing, details of feeding, dates of inoculations and de-worming of the pup and the name and address of the veterinary practitioner who was attending to it.

(3) Every breeder shall screen prospective purchasers to ascertain their potential to take proper care of the breed, especially if it is a large one, to attend to its grooming, socialising, spatial and veterinary needs, and to bear the expense for its upkeep and maintenance.

(4) No breeder shall sell a dog to a pet shop operating without a licence or for any other activity which is in contravention of any other law.

(5) The breeder shall keep track of all pups produced and sold and it shall be the responsibility of the breeder to obtain information regarding the progress and state of health of all dogs sold by him, at least once each year.

(6) Every breeder shall rehabilitate a pup not sold within a period of six months, through an Animal Welfare Organisation.

9. Records.— (1) Every breeder shall maintain records of all animals housed in the establishment, including dogs for breeding and dogs for sale and be kept at the establishment for inspection in Form-III appended to the First Schedule.

(2) Every breeder shall maintain records of individual dogs, both male and female, including the following information, namely:—

(a) breed;

(b) name and number (or litter number);

- (c) micro-chip number;
- (d) sex, colour and markings;
- (e) date of birth;
- (f) names and microchip numbers of sire and dam;
- (g) name of breeder from whom acquired (where applicable);
- (h) name and address of person from whom directly acquired (where applicable);
- (i) date of acquisition;
- (j) date and duration of lease, if any;
- (k) date and place of mating;
- (l) names of persons handling the mating;
- (m) name and number of dog, including micro-chip number, with which mated;
- (n) name and address of owner (where applicable);
- (o) date of whelping;
- (p) number of pups whelped, by sex colour and markings;
- (q) litter registration number if any;
- (r) date of sale, death or rehabilitation of each pup so described;
- (s) name and address of purchaser;
- (t) cause of death as determined by a veterinary doctor and post mortem report of each dog that dies in the establishment; and
- (u) any other information that is deemed relevant by the Board or the State Board.

(3) Every breeder shall use clear and concise contracts to document sales, lease arrangements, spaying or neutering contracts, and any other contract pertaining to the dogs at their establishments in Form-IV appended to the First Schedule.

(4) Every breeder shall maintain health and medical records along with separate vaccination record, in Form-V appended to the First Schedule, of each dog, whether male or female, and of every pup in every litter and a copy of the records of any dog or pup that is sold shall be provided to the purchaser.

(5) All records maintained by the breeder under these rules shall be kept at least for a period of eight years, unless the State Board directs in writing that the records be maintained for a longer period for the purpose of investigation.

10. Appeal.— (1) Any breeder aggrieved by the decision of the State Board may, within thirty days of receipt of the decision, prefer an appeal to the Secretary, Animal Husbandry, Department of the State.

(2) Secretary, referred to in sub-rule (1), shall, after giving notice to the breeder and the State Board, and giving an opportunity of hearing to the parties, either reject or allow the appeal, for the reasons to be recorded in writing and communicated to the breeder and the State Board.

(3) Once the appeal is heard and rejected, all dogs over six months of age, in the breeding establishment shall be neutered at an Animal Birth Control facility and all pups that are not six months of age shall be given to the Animal Welfare Organisation for adoption, records of which shall be supplied to the State Board.

11. Reports by breeder.— (1) Every breeder registered under these rules shall —

(a) submit, at the end of each year, a report to the State Board, consisting of the information as to the total number of animals sold, traded, bartered, brokered, given away, boarded or exhibited during the previous year;

(b) provide to the State Board, such other information as may be required by the State Board, from time to time; and

(2) The State Board shall send a consolidated report at the end of each year to the Board consisting of the information as to the total number of animals sold, traded, bartered, brokered, given away, boarded or exhibited during the previous year and any such other information as may be required by the Board, from time to time.

12. Effect of death of breeder registered under these rules.— In the case a breeder registered under these rules, dies before the expiry of the period of registration, the registration in respect of the establishment shall be deemed to have been granted to his legal heirs in respect of that establishment and shall remain in force until the end of a period of three months from the date of death of the breeder and thereafter a fresh application for registration of the breeder in respect of that establishment shall be made in accordance with these rules for continuing the establishment.

13. No licence without registration.— No establishment being used or intended to be used for breeding or housing dogs for breeding shall be granted any licence by the local authority, unless the breeder has obtained a certificate of registration from the State Board in accordance with these rules.

THE FIRST SCHEDULE

[See rules 4(2) and 5(1)]

FORM-I

APPLICATION FOR REGISTRATION OF BREEDER IN RESPECT OF AN ESTABLISHMENT

To

The State Animal Welfare Board

----- (name of the State)

Subject: Application for registration of breeder in respect of an establishment

Sir,

I/We ----- r/o----- with office address -----
-----, do hereby apply for a registration as breeder in respect of the establishment ---
----- (details of establishment) in accordance with the particulars set out below:—

- (1) Name and address of the applicant (breeder):
- (2) Name and address of the establishment:
- (3) Telephone number:
- (4) Details of accommodation and infrastructure available at proposed establishment:
- (5) Working hours and rest day, i.e. day on which establishment shall remain closed:
- (6) Ventilation arrangement:
- (7) Lighting arrangement:
- (8) Heating or cooling arrangement, and manner in which comfortable temperature will be maintained for all pet animals:
- (9) Arrangements for food storage:
- (10) Cleanliness, how proposed to be maintained, and arrangements for removal of animal excreta and waste:
- (11) Arrangement for disposal of animals that die:
- (12) Arrangement for medical and veterinary support:
- (13) Details of dogs proposed to be bred in the establishment:
 - (a) Breeds and number of dogs of each breed.
 - (b) Age of each of dog.
 - (c) Accommodation and number and size of cages and enclosures.
- (14) Qualification and experience of the applicant (breeder) in respect of breeding activities:
- (15) Details of cheque or demand draft number for payment of fee:

ADDITIONAL DETAILS IN CASE OF RENEWAL OF REGISTRATION

(16) Details of dogs acquired and mated:

Sl. No.	Dog's micro-chip number	Date of acquisition	Date of mating	Mated with (micro-chip number of mate)	Pups born (micro-chip numbers)

(17) Number of dogs and pups died with reasons of death, post mortem report and micro-chip number:

(18) Details of dogs/pups sold:

Sl. No.	Dog/pup sold (micro-chip number)	Age of dog/pup	Date of sale	Sale price	Name, address and telephone number of purchaser

(19) Number of pups unsold and manner of their rehabilitation:

I/We do hereby declare that the information provided by us is accurate and true.

Place:

Signature of Applicant

Date:

Form II

[See rule 4(6)]

Certificate of Registration of Dog Breeding Centre

1. This Certificate of Registration is granted to (Name and address of applicant) to establish a Dog Breeding Centre as prescribed in Prevention of Cruelty to Animals (Dog Breeding and Marketing) Rules, 2017.
2. The location of the Breeding Centre is at
3. The owner of Dog Breeding Centre is permitted to deal with the following dog breeds
4. The owner of Dog Breeding Centre shall abide by provisions of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960) and the rules and notifications issued thereunder.
5. The owner of Dog Breeding Centre shall submit every year an annual report in compliance with clause (a) of rule 11 of the aforesaid rules for the year ending 31st December to reach the undersigned before 31st January of the succeeding year.
6. The Certificate of Registration shall be displayed prominently in the Shop.
7. The Certificate of Registration is non-transferable
8. The Certificate of Registration is valid up to and renewal application should be submitted thirty days prior to the expiry date

Signature and Seal of

Date:

the State Animal Welfare Board

Form III

[See rule 9(1)]

Register of Breeders and Suppliers of Dogs/Pups

Sl. No.	Name and address of Breeder/Supplier	Contact Number and e-mail	Date of Transaction
1	2	3	4

Description of Dog breed	Age of animal	Vaccination details	Dog breeds at establishment
5	6	7	8

Micro-chip number of the dog breed	Remarks
9	10

Form IV

[See rule 9(3)]

Register of Sale of Dogs/Pups

Sl. No.	Name and address of Purchaser	Contact Number	Sale amount
1	2	3	4

Type of Dog Sold						Remarks
Category Or Breed	Colour	Micro-chip number	Sex	Age	Vaccination	
5	6	7	8	9	10	11

Form V

[See rule 9(4)]

Register of health and medical records of Dogs/Pups

Sl No.	Date on which animal was vaccinated	Sex of animal	Age of animal
1	2	3	4

Details of litter, if any	Date of Sale or Disposal otherwise	Medical attention provided	In case of death, how the animal was disposed	Remarks
5	6	7	8	9

THE SECOND SCHEDULE

[See rules 5(2) and 6]

PART I**FACILITIES TO BE PROVIDED BY BREEDER IN AN ESTABLISHMENT**

1. **Suitable kennels or accommodation.**— The dogs shall at all times be kept in kennels or accommodation suitable in all respects, in terms of construction, size, number of dogs, exercising facilities, proper temperature, lighting, ventilation and cleanliness.
2. **Adequate housing.**— (1) Adequate housing with the provision of a sanitary facility, protection from the extremes of weather conditions, proper ventilation and appropriate space shall be provided.
(2) All housing shall be made of impervious materials that can be sanitised and wood shall not be allowed for this purpose.
3. **Indoor housing facility.**— The indoor housing facility at the establishment with environmental controls, housing or intended to house dogs and meeting the following requirements shall be provided, namely:—
 - (i) it may consist of runs or pens totally enclosed in a barn or building, or of connecting inside or outside runs or pens within a totally enclosed building;
 - (ii) it should be capable of controlling the temperature within the building or structure within the limits set forth for that species and age of animal, of maintaining humidity levels, and of rapidly eliminating odors from within the building;
 - (iii) it shall have an impervious floor; impervious surface means a surface that does not permit the absorption of fluids;
 - (iv) it shall be an enclosure created by the continuous connection of a roof, floor and walls; and
 - (v) it shall have at least one door for entry and exit that can be opened and closed and any windows or openings which provide natural light shall be covered with a transparent material such as glass or hard plastic.
4. **Care and upkeep of dogs.**— The dogs shall be supplied with—
 - (a) adequate quantity of wholesome food at suitable intervals of not more than eight hours, and suitable for that species and age and enough to maintain a reasonable level of nutrition in each animal and served in a safe receptacle, dish or container;
 - (b) adequate supply of fresh, clean drinking water in a safe receptacle, dish or container and available at all times; and
 - (c) a fenced area for adequate exercise or provision for exercising the dog on a leash exists.

PART II**GENERAL REQUIREMENTS TO BE ADHERED TO BY BREEDERS**

5. **Breeding requirements.**— (1) The breeder shall be knowledgeable about reproduction, nutrition, wellness and care, early behavioral development, and breeding ethics.
 - (2) Only normal, healthy, mature female dogs that have reached their eighteenth month shall be bred and shall be certified as healthy by a veterinary practitioner at least ten days prior to their being bred.
 - (3) No female dog shall be exploited to produce litters in two consecutive breeding seasons.
 - (4) Female dogs shall not be used such that they give birth to pups before the end of the period of twelve months beginning with the day on which they last gave birth to pups.
 - (5) Only one litter shall be produced in one year and artificial or unnatural techniques such as artificial insemination and rape stands shall not be used to impregnate dogs.
 - (6) No female dog shall be exploited to give birth to more than five litters of pups during her lifespan.
 - (7) No male dog shall be used for breeding unless he is a healthy, mature dog, and only after he has reached his eighteenth month and shall be certified as healthy by a veterinary practitioner at least ten days prior to his being mated.

6. Common breeding techniques.— (1) Breeders are known to utilise following four common breeding techniques, namely:—

- (i) out breeding;
- (ii) line breeding;
- (iii) in breeding; and
- (iv) incest breeding.

(2) Notwithstanding anything in sub-paragraph (1), the following two breeding techniques are permitted and accepted under these rules, namely:—

- (i) out breeding— the mating of dogs, which are not at all related to one another; and
- (ii) line breeding— mating between dogs that are marginally related to each other and in this case dogs are chosen for their special attributes to obtain certain types.

(3) The following two mating techniques are not permitted and are prohibited under these rules, namely:—

- (i) in breeding— mating between dogs that are related, which means that at least one ancestor of either is present on the side of both sire and dam and in breeding is breeding between relatives of the 2nd to 4th grade in straight or side line within the first four generations e.g. uncle to niece, nephew to aunt, cousin to cousin, grandparents to grandchildren;
- (ii) incest breeding— mating between parents and children or between brother and sister, i.e. 1st grade relatives and incest breeding as well as continued inbreeding and line breeding is risky, since it increases the danger of hereditary diseases.

(4) Female dogs shall not be mated after the age of eight years.

(5) Every breeder shall furnish the proof of age of their breeding female dogs certified by a veterinary practitioner.

(6) Every breeder shall keep a full record of the litter that the male dog or female dog has previously produced and other relevant details of the litter.

(7) Every breeding female dog shall be up-to-date with their vaccination boosters and de-worming prior to mating.

(8) There shall be no tail docking, ear cropping de-barking, de-clawing, branding, dyeing, injecting substances to enhance visual appeal, performing a surgery or procedure to camouflage or hide any defect or infirmity or any other kind of mutilation of any body part of the pup and any change of appearance by artificial means is strictly forbidden.

(9) Breeding to create new breeds of dogs or unusual looks shall be strictly prohibited.

PART III

HEALTH RELATED REQUIREMENTS

7. Health related requirements.— Every dog shall be kept in a clean, healthy and safe environment and be provided with all socialisation opportunities, vaccinations, and de-worming necessary to provide maximum mental and physical well-being.

8. Veterinary care.— (1) Every breeder shall have the services of a consultant veterinary practitioner available to attend to emergency medical requirements and records of his visits shall be maintained in writing.

(2) The consultant veterinary practitioner shall visit the establishment periodically, at regular intervals and medical examination of each dog at the establishment shall be conducted at least once every month and a record of the same shall be maintained by the breeder.

(3) Individual health records shall be maintained of all animals above the age of eight weeks, or that have been weaned, or that have been treated with a medical procedure, whichever occurs first.

(4) Litter health records may be kept on litters when litter-mates are treated with the same medication or procedure and health records (or a copy) shall accompany all animals upon transfer of ownership.

(5) Every breeder shall ensure that frequent observation of all dogs to assess their health and well-being is performed by a veterinary practitioner or by a para vet if a mechanism of direct and frequent communication is established so that timely and accurate information on problems of animal health, behavior and well-being is conveyed to the consultant veterinary practitioner.

- (6) Adequate training and guidance to personnel involved in the care of animals, including daily observation of animals, is required and the breeder shall employ only such persons who can perform at the level required by these rules.
- (7) If the veterinary practitioner finds, either during the course of a visit to the establishment, or upon his attention being invited to the same by the State Board, that an animal or group of animals from a breeding kennel are suffering from contagious, communicable or infectious disease or exposure to any disease, a quarantine to that establishment may be issued by the veterinary practitioner until the animals are—
- (i) recovered and no longer capable of transmitting the disease; or
 - (ii) isolated; or
 - (iii) tested, vaccinated or otherwise treated; or
 - (iv) humanely euthanised by a veterinary practitioner and properly disposed off.
- (8) A quarantine issued by the veterinary practitioner shall remain in effect until released in writing by the veterinarian and the information regarding such a quarantine having been issued shall be provided by the veterinary practitioner to the State Board, in writing.
- (9) All pups shall be vaccinated which can start at the age of seven-eight weeks, and are usually completed at the age of eighteen weeks.
- (10) The dogs shall have been tested for genetic defects, including hip dysplasia, progressive retinal atrophy, night blindness, hypothyroidism, entropion, ectropion, overshot, undershot jaw (when incisors do not touch or mesh), wry mouth, two or more missing teeth, unilateral cryptorchid or full cryptorchid males.
9. **Euthanasia.**— Dogs shall not be euthanised just because they can no longer breed or can not be sold and therefore not commercially viable and all euthanasia of mortally wounded or injured animals or incurably sick or terminally ill animals shall be accomplished by a registered veterinary practitioner under Veterinary Council of India or the State Veterinary Council in a manner and through a method approved by the Veterinary Council of India and the records including post mortem report shall be maintained of all animals euthanised, and all carcasses including those that naturally died must be incinerated and shall not be sold.

PART IV

HOUSING FACILITIES AND MANNER OF HOUSING DOGS

10. **Structure and construction.**— (1) Housing facilities for dogs shall be structurally sound, and be kept in good repair, contain the animals securely and restrict other animals from entering.
- (2) Areas inside of housing facilities shall be kept neat and free of clutter, including equipment, furniture and stored material, but may contain materials actually used and necessary for cleaning the area, and fixtures or equipment necessary for proper husbandry practices.
- (3) Housing facilities shall be physically separated from any other business.
- (4) All surfaces in housing facilities, and all other constructions shall be such as allow them to be readily cleaned and sanitised, or removed or replaced when worn or soiled.
- (5) There shall be no jagged edges or sharp points that may injure the animals.
- (6) The ceilings of indoor housing facilities shall be impervious to moisture.
11. **Storage facilities.**— (1) Supplies of food and bedding shall be stored outside the animal area and in a manner that protects the supplies from spoilage.
- (2) The supplies shall be stored off the floor and away from the walls, to allow cleaning underneath and around any supplies.
- (3) Foods requiring refrigeration must be stored accordingly, and all food be stored in a manner that prevents contamination and deterioration of its nutritive value.
- (4) All open supplies of food and bedding must be kept in leak-proof containers with tightly fitting lids to prevent contamination and spoilage and only food and bedding that is currently being used may be kept in the animal areas.
12. **Cleaning.**— (1) Hard surfaces with which the dogs come in contact shall be spot-cleaned daily and sanitised.
- (2) There shall be no accumulation of excreta, and floors made of sand, gravel, grass or other similar material shall be raked or spot-cleaned with sufficient frequency to ensure all animals the freedom to avoid contact with excreta.

13. Drainage and waste disposal.— (1) Regular waste disposal, removal and disposal of animal and food waste, discarded bedding, debris, garbage, water, other fluids and wastes, shall be provided for.

(2) Housing facilities shall be equipped with disposal facilities and drainage systems that ensure rapid elimination of animal waste and water and if closed drainage systems are used they shall be equipped with traps that prevent the backflow of gases sewage onto the floor.

(3) Standing puddles of water in animal enclosures and adjacent areas shall be drained or mopped up so that the animals stay dry.

(4) Trash containers in housing facilities, food storage and food preparation areas shall be leak-proof and possessed of tightly fitted lids at all times.

14. Water and electricity.— The housing facility shall have reliable and adequate electricity supply including a backup provision in case of outage, and adequate potable running water for the animals' drinking needs, for cleaning, and for carrying out other husbandry requirements.

15. Ambient and comfortable temperature.— (1) The temperature within indoor housing facilities for animals shall be ambient and comfortable, depending on the breeds of dogs that are housed inside.

(2) The temperature shall be such as provides for their health and well-being.

16. Ventilation.— (1) Adequate ventilation at indoor housing facilities containing dogs shall be ensured by means of windows, doors, vents or air conditioning.

(2) The air shall be circulated by fans, blowers or air conditioning so as to minimise drafts, odors and moisture condensation.

17. Lighting.— (1) Indoor housing facilities for animals shall be well-lit enough to permit routine inspection, cleaning of the facility and observation of the animals.

(2) Primary enclosures shall be placed so as to protect the animals from excessive light.

18. Chemicals.— (1) Chemicals used for normal husbandry practices, cleaning, disinfecting, and the like, that may be toxic to the animals shall not be stored in food storage or food preparation areas, but may be stored in adjacent rooms or in secure cabinets in the animal areas.

(2) All chemicals shall be clearly labeled.

19. Medicine.— (1) All medication shall be stored in clean, dust restricting cabinets with well-fitting doors or other suitable containers with well-fitting lids.

(2) All medication shall be clearly marked, or labeled.

(3) Manufacturers' labels, including expiration date, shall not be removed or defaced.

(4) Medication such as dips, and rinses and those marked for external use only may be stored in the same cabinet but shall be physically separated from other medication.

20. Fire detection and extinguishers.— All indoor housing facilities and the indoor portion of sheltered housing facilities shall be equipped with properly maintained smoke or heat detection devices and extinguishers.

21. Outdoor housing facilities.— (1) The following categories of dogs shall not be kept in outdoor facilities, unless that practice is specifically approved by the attending veterinary practitioner in writing:—

(i) dogs that are not accustomed to the temperatures prevalent in the area or region in question;

(ii) dog breeds that cannot tolerate the temperatures prevalent in the area or region in question, such as long-haired breeds in high temperature locations; and

(iii) sick, infirm, aged or young animals.

(2) Outdoor facilities for dogs shall include one or more structures with roofs, i.e., one or more shelters that are accessible to each animal in each outdoor facility, and that are large enough to allow each animal within the structure to sit, stand and lie down in a normal manner, and to turn about freely and in addition, one or more separate outside areas of shade shall be provided, large enough to contain all the animals at once and protect them from the direct rays of the sun.

(3) Shelters in outdoor facilities for animals shall contain a roof, four sides and a floor, and shall—

(i) provide the animals with adequate protection and shelter from heat and cold; and

- (ii) provide the animals with protection from the direct rays of the sun and the direct effect of wind, rain, snow or other precipitation.
- (4) Primary enclosures for animals shall meet the following minimum requirements:—
- (a) primary enclosures shall be constructed of suitable material and shall be structurally sound;
 - (b) they shall be kept in good repair;
 - (c) they shall have no sharp points or edges that can injure the animals;
 - (d) they shall be such as contain the animals securely, and keep other animals from entering the enclosure;
 - (e) enable the animals to remain dry and clean;
 - (f) provide shelter and protection from extreme temperatures and weather conditions that may be uncomfortable for or hazardous to the animals;
 - (g) provide sufficient shade to shelter all the animals housed in the primary enclosure at one time;
 - (h) provide all the animals with easy and convenient access to clean food and water;
 - (i) enable all surfaces that come in contact with the animals to be readily cleaned and sanitised, or replaced when worn or soiled;
 - (j) have floors that are constructed in a manner that protects the animal's feet and legs from injury; and
 - (k) provide sufficient space to allow each animal to turn about freely, to stand, sit and lie down in a comfortable, normal position, and to walk in a normal manner.
- (5) Each dog housed in a primary enclosure (including weaned pups) shall be provided a minimum amount of floor space, calculated as follows:—
- (a) length of the enclosure: four times the length of the dog, measured from the tip of its nose to the base of its tail; and
 - (b) breadth of the enclosure: two times the length of the dog, measured from the tip of its nose to the base of its tail.
- (6) Each female dog with nursing pups shall be provided with an additional amount of floor space, based on her breed and behavioral characteristics, and in accordance with generally accepted husbandry practices as determined by the attending veterinarian.
- (7) The interior height of a primary enclosure shall be at least six inches higher than the head of the tallest dog in the enclosure when it is in a normal standing position.
- (8) Cages or crates used to contain animals for short periods of time shall be large enough to permit the animal to stand, sit, lie and turn around in a normal manner.
- (9) Dogs shall not be caged except at night when the caregiver retires, or when necessary for medical reasons.
- 22. Dogs on tethers.**— (1) Dogs may be kept on tethers only in outside housing facilities that meet the requirements of these rules, and only when the tether meets the requirements of this paragraph.
- (2) The tether shall be attached to the front of the dog's shelter structure or to a post in front of the shelter structure and shall be at least three times the length of the dog, as measured from the tip of its nose to the base of its tail.
 - (3) The tether shall allow the dog convenient access to the shelter structure, and to food and water containers.
 - (4) The tether shall be of the type and strength commonly used for the size of dog involved, and shall be attached to the dog by a well-fitted collar that does not cause trauma or injury to the dog.
 - (5) Collars made of materials such as wire, flat chains, or chains with sharp edges, or chains with rusty or non-uniform links, are prohibited.
 - (6) The tether shall be attached such that the dog is not in danger of becoming entangled with other objects or coming into physical contact with other dogs in the outside housing facility, and such that the dog is able to roam to the full range of the tether.
 - (7) A perimeter fence that is of sufficient height to keep unwanted animals out shall enclose the dog housing area where dogs are on tethers.

(8) The fence shall be constructed such that it protects the dogs by preventing other dogs of equal or greater size from going through it or under it, or even above it, and coming into contact with the dogs inside.

23. Compatibility.—(1) All dogs housed in the same primary enclosure shall be compatible, as determined by observation.

(2) Not more than twelve adult dogs shall be housed in the same primary enclosure.

(3) Female dogs in heat shall not be housed in the same primary enclosure with sexually mature males, except for breeding.

(4) Except when maintained in breeding colonies, female dogs with litters shall not be housed in the same primary enclosure with other adult dogs; pups less than four months of age shall not be housed in the same primary enclosure with adult dogs other than their dam or foster dam.

(5) Dogs with a vicious or aggressive disposition shall be housed separately from other dogs and sedation shall not be used to control behavior of such dogs.

(6) Dogs that have or are suspected of having a contagious disease shall be isolated from healthy animals.

(7) When an entire group or room of animals is known to have or believed to be exposed to an infectious or contagious agent, the group may be kept intact during the process of diagnosis, treatment and control.

24. Exercise for dogs and socialising.—(1) Commercial kennels, commercial breeders, traders, other dealers, and exhibitors shall develop, document and follow an appropriate plan to provide dogs with an opportunity for exercise.

(2) The plan shall be approved and signed by the breeder and the attending veterinarian, and include written standard procedures to be followed in providing the opportunity for exercise.

(3) The plan shall also be made available to the State Board upon request.

(4) The plan shall, at a minimum, comply with each of the following:—

(a) dogs over twelve weeks of age, except female dogs with litters, housed, held or maintained by any animal shelter, boarding kennel, commercial kennel, commercial breeder, trader, other dealer, exhibitor, or other licensee shall be provided the opportunity for exercise regularly; and

(b) the frequency, method and duration of the opportunity for exercise shall be determined by the consultant veterinary practitioner.

(5) The breeders, in developing their plan, shall consider providing positive physical contact with humans that encourages exercise through play or other similar activities and if a dog is housed, held or maintained at a facility without sensory contact with another dog, it shall be provided with positive physical contact with humans at least once daily.

(6) The opportunity for exercise may be provided in a number of ways, including—

(a) group housing in cages, pens or runs that provide at least one hundred per cent. of the required space for each dog if maintained separately under the minimum floor space requirements of these rules;

(b) providing access to a run or open area at the frequency and duration prescribed by the attending veterinarian;

(c) adequate exercise either in a fenced area or on a leash with a person on the other end;

(d) exercising for at least thirty minutes twice per day;

(e) socialising with people at suitable intervals equaling at least three hours per day for adult and five hours per day for pups less than four months of age; and

(f) other similar activities.

(7) Every establishments shall keep checklists documenting the name of the caretakers who complete these tasks, and the time at which each does so and checklists shall be made available to the State Board during inspections, or when demanded.

(8) Every establishment shall ensure that forced exercise methods or devices such as swimming, treadmills or carousel-type devices are resorted to or used:

Provided that if, in the opinion of the veterinary practitioner, it is inappropriate for certain dogs to exercise because of their health, condition or well-being, the breeder may be exempted from meeting the requirements of this paragraph for those specific dogs only.

25. Feeding.— (1) Animals shall be fed as per prescribed standards.

(2) The food shall be uncontaminated, wholesome, palatable and of sufficient quantity and nutritive value to maintain the normal condition and weight of the animal.

(3) The diet shall be appropriate for the individual animal's age and condition.

(4) Food receptacles used for animals shall be readily accessible to all animals and shall be located so as to minimise contamination by excreta and be protected from the rain and feeding pans shall be made of a durable material that can easily be cleaned and sanitised and shall be kept clean.

26. Cleaning, sanitisation and housekeeping.— (1) Excreta and food waste shall be removed from primary enclosures daily, and from under primary enclosures as often as necessary, to prevent an excessive accumulation of feces and food waste, to prevent soiling of the animals contained in the primary enclosures, and to reduce disease hazards, insects and odors.

(2) When water is used to clean the primary enclosure, whether by hosing, flushing or other methods, animals shall be removed unless the enclosure is large enough to ensure that the animals will not be harmed, wetted or distressed in the process.

(3) Standing water shall be removed from the primary enclosure and adjacent areas.

(4) Animals in other primary enclosures shall be protected from being contaminated with water and other wastes during the cleaning.

(5) Hard surfaces of primary enclosures and food and water receptacles shall be cleaned and sanitised, by washing them with appropriate detergent solutions and application of disinfectants.

(6) Pens, runs and outdoor housing areas using material that cannot be cleaned and sanitised using the method previously stated, such as gravel, sand, grass, earth or absorbent bedding, shall be cleaned and sanitised by removing the contaminated material as necessary to prevent odors, disease hazards, and insects.

27. Housekeeping for premises.— The establishment, where housing facilities are located, including buildings and surrounding grounds, shall be kept clean and in good repair, and free of accumulations of trash, junk, waste products and discarded matter, and weeds, grasses and bushes shall be controlled so as to facilitate cleaning of the facility, control and prevent fleas and ticks, and protect the health and well-being of the animals and regular de-ticking shall be practiced at the time of grooming.

28. Annual vaccination of dogs.— The dogs at every breeding establishment shall be annually vaccinated against rabies (and preferably against canine distemper, parvo-virus, leptospirosis and viral hepatitis).

29. Employees.— (1) Every breeder shall have enough employees to carry out the level of husbandry practices and care required by these rules.

(2) The employees who provide for husbandry and care or handle animals shall be properly trained, and supervised by an individual who has the requisite degree of knowledge, background and experience in proper husbandry and care of dogs to be able to do so.

30. Identification of dogs.— Every breeder shall ensure that—

(a) every dog is identified by an official tag affixed to the collar of each dog;

(b) identification of all breeding stock and of pups over three months, are performed by a veterinary practitioner through micro-chipping;

(c) tags are sequentially numbered and referenced to record which completely and accurately identify the source of the dog, all medical treatment or procedures that it may have been subjected to, and the disposition of the animal; and

(d) the micro-chips are allotted sequential numbers for the same purpose and a record of the tag number and micro-chip number used to identify the dog accompany each dog that is sold or otherwise moved out of the establishment.

[F.No.1/1/2010-AWD (Pt)]

RAVI S. PRASAD, Jt. Secy.

- (ख) हैमस्टर और हिरनमूसा को केवल प्राथमिक बाड़ों में रखा जाएगा, जो टाइल, बोर्ड, अच्छी क्वालिटी का लिनोलियम, अनुपचारित तृननिर्मित चटाइयों या एक्राइलिक न फिसलने वाले भूपृष्ठ, जैसे ठोस फर्श का होगा और हैमस्टर के प्राथमिक बाड़े के फर्श में कभी भी जालीदार तार, स्टील और छीलन नहीं होगी।
- (ग) उन्हें अन्य विद्वेषी पशु प्रजाति, जैसे बिल्लियों और कुत्तों के निकट नहीं रखा जाएगा।

7. चूहों के लिए—

- (क) प्रत्येक चूहे के लिए प्रदान किया जाने वाला क्षेत्र 1.0 वर्ग फुट से कम का नहीं होगा।
- (ख) प्राथमिक बाड़ों की न्यूनतम ऊंचाई 8 इंच होगी।
- (ग) चूहों को केवल जालीदार प्राथमिक बाड़ों में रखा जाएगा, और उनके बाड़े का फर्श जालीदार और छीलन वाला होगा।
- (घ) वजन में 500 ग्राम से अधिक के चूहों के लिए न्यूनतम ऊंचाई तथा स्थान अपेक्षाएं व्यष्टिक आधार पर अवधारित की जाएंगी और ऊपर विनिर्दिष्ट ऊंचाई तथा स्थान से अधिक होगी।
- (ङ.) चूहों को अन्य विद्वेषी पशु प्रजातियों, जैसे बिल्लियों और कुत्तों के निकट नहीं रखा जाएगा।

8. मूषकों के लिए—

- (क) प्रत्येक मूषक के लिए प्रदान किया गया क्षेत्र 1 वर्ग फुट से कम का नहीं होगा।
- (ख) प्राथमिक बाड़ों की न्यूनतम ऊंचाई 6 इंच होगी।
- (ग) मूषक को केवल प्राथमिक बाड़ों में रखा जाएगा, जो टाइल, बोर्ड, अच्छी क्वालिटी का लिनोलियम, अनुपचारित तृननिर्मित चटाइयों या एक्राइलिक न फिसलने वाले भूपृष्ठ, जैसे ठोस फर्श का होगा और उनके बाड़े के फर्श में कभी भी जालीदार तार, स्टील और छीलन नहीं होगी।
- (घ) मूषकों को अन्य विद्वेषी पशु प्रजातियों, जैसे बिल्लियों और कुत्तों के निकट नहीं रखा जाएगा।

[फा. सं. 1/1/2010-एडब्ल्यूडी (पार्टी)]

मंजू पाण्डे, संयुक्त सचिव

MINISTRY OF ENVIRONMENT, FOREST AND CLIMATE CHANGE

NOTIFICATION

New Delhi, the 6th September, 2018

G.S.R.844(E).—Whereas the draft Prevention of Cruelty to Animals (Pet Shop) Rules, 2016 were published, as required under sub-section (1) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), vide the Government of India, Ministry of Environment, Forest and Climate Change notification number G.S.R. 1152(E), dated the 16th December, 2016 in the Gazette of India, Extraordinary, Part-II, Section 3, Sub-section (i), dated the 16th December, 2016 inviting objections and suggestions from all persons likely to be affected thereby within a period of thirty days from the date on which copies of the Gazette containing the said notification were made available to the public;

And whereas, the copies of the said Gazette were made available to the public on the 16th December, 2016;

And whereas, objections and suggestions received from the public have been considered by the Central Government;

Now, therefore, in exercise of the powers conferred by the sub-sections (1) and (2) of section 38 of the Prevention of Cruelty to Animals Act, 1960 (59 of 1960), the Central Government hereby makes the following rules, namely:-

1. Short title and commencement.—(1) These rules may be called the Prevention of Cruelty to Animals (Pet Shop) Rules, 2018.

(2) They shall come into force on the date of their publication in the Official Gazette.

2. Definitions.—(1) In these rules unless the context otherwise requires,—

- (a) “Act” means the Prevention of Cruelty to Animals Act, 1960 (59 of 1960);
- (b) “Animal Welfare Organisation” means a welfare organisation for animals recognised by the Board;
- (c) “breeder” means an individual or group of persons who own pet animal for breeding and sale, and includes a boarding kennel operator, intermediate handler and trader;
- (d) “certificate of registration” means a certificate of registration issued under these rules;
- (e) “Farm” means a Farm contained in the First schedule;
- (f) “infirm animal” means any animal that is suffering from any functional or physiological disorder, defect or disability, or any deficiency from birth, or acquired after birth;
- (g) “inspector” means a veterinarian of the State Government authorised in writing by the State Animal Welfare Board or SPCA:

Provided that any person who is or has been a pet shop owner or breeder, or is related to a pet shop owner or breeder, shall not be authorised as an inspector under these rules;

- (h) “local authority” means a municipal committee, SPCA or other authority for the time being invested by law with the control and administration of any matter within a specified local area;
- (i) “mutilating” means subjecting an animal to a surgery or procedure such as ear cropping, tail docking or branding or otherwise performing a surgery or procedure to camouflage or hide any defect or infirmity except curative surgery;
- (j) “pet animal” includes dog, cat, rabbit, guinea pig, hamster, rodents of the rat or mice category, pet birds and such other type of animals, the ownership of, and trade in which, is not prohibited by any other law, rules or regulations;
- (k) “pet shop” means a shop, place or premises, including any shop, place or premises in a weekly or other market, where pet animals are sold or housed, kept or exhibited for sale, or where any retail or whole-sale business involving the selling or trading of pet animals are carried out, and includes online platforms over which the sale and purchase of pet animals is carried out wherever the context permits;
- (l) “pet shop owner” means any person who owns or has control over any pet shop;
- (m) “Schedule” means a Schedule annexed to these rules;
- (n) “SPCA” means Society for Prevention of Cruelty to Animals established in any district under the Prevention of Cruelty to Animals (Establishment and Regulation of Societies for Prevention of Cruelty to Animals) Rule, 2001 made under the Act;
- (o) “State Board” means the State Animal Welfare Board constituted in a State by the State Government;
- (p) “un-weaned animal” means —
 - (i) the offspring of an animal that has not attained the age at which it normally acquires independent survival skills to meet its basic needs like food, warmth and safety; and
 - (ii) kittens and pups below eight weeks, and captive birds without mature flight feathers.
- (q) “veterinary practitioner” means a veterinary practitioner registered under the provisions of the Indian Veterinary Council Act, 1984 (52 of 1984).

(2) Word and expressions used in these rules and not defined, but defined in the Act, shall have the meanings respectively assigned to them in the Act.

3. Prohibition of operating pet shops without registration.—(1) No person shall—

- (a) carry on or continue the business of sale or trade in pet animals, whether retail or wholesale; or

(b) establish or operate a pet shop, or any other establishment engaged in sale, purchase or exchange of pet animals by whatever name called,

without obtaining a certificate of registration in Form II:

Provided that any person operating a pet shop on the date of the commencement of these rules shall, within sixty days of such commencement, obtain a certificate of registration of pet shop under these rules:

Provided further that if a person referred to in the first proviso fails to apply for the registration within such period of sixty days or is refused the registration for any reason specified in these rules, then, the State Board or Society for Prevention of Cruelty to Animals shall seal the shop, and confiscate the pet animals displayed or housed for sale and the pet animals so confiscated shall be handed over to as deemed fit by the magistrate under the provisions of section 29 of the Act, however, thirty days notice shall be given to the pet shop owner before confiscation of the pet animals from the date of expiry of such period of sixty days or from the date on which the registration has been refused.

(2) Every pet shop owner shall prominently display the certificate of registration in the pet shop.

(3) Every pet shop owner shall keep the pet shop open for inspection by an inspector authorised in writing by the State Board or the Society for Prevention of Cruelty to Animals.

4. Registration of pet shop.—(1) A person shall not be eligible for registration of pet shop under these rules unless,—

(a) in the case of an individual, he has attained the age of majority and is of sound mind and is not disqualified from contracting under any other law for the time being in force; and

(b) in any other case, the person is a corporation, company or other association of persons duly registered in accordance with any law for the time being in force.

(2) An application for registration of pet shop shall be made to the State Board in Form-I providing all information required therein and accompanied with a non-refundable fee of five thousand rupees.

(3) A person shall be required to make separate applications for every pet shop or premises being used or intended to be used for carrying on or continuing the business of sale or trade in pet animals, whether retail or wholesale.

(4) Pet shop owner shall submit an affidavit with the application referred to in sub-rule (2) stating that all the conditions for registration of pet shop have been fulfilled.

(5) The State Board, on receipt of an application under sub-rule (2), may register the pet shop and issue a certificate of registration in Form II to the applicant in respect of that pet shop, and the state Board shall maintain a Register of certificate of registration in Form III.

(6) The State Board shall, after registration of pet shop under sub-rule (5), cause the pet shop to be inspected by an authorised veterinarian of the State Government within a period of three months.

(7) The veterinarian referred to in sub-rule (6) shall after making inspection submit a signed report to the State Board.

(8) The State Board may, after considering the report of the veterinarian and on being satisfied that the pet shop complies with the requirements specified under these rules, continue the registration of pet shop.

(9) The State Board shall not permit continuation of registration of pet shop, if—

(a) the information submitted by the applicant has been found to be false or the applicant has made material and deliberate misstatements in the application or provided falsified or fabricated records to the State Board; or

(b) the applicant has, at any stage prior to submission of his application for registration of pet shop, been convicted of any offence under the Act, or the Wild Life (Protection) Act, 1972 (53 of 1972) or for any offence relating to animals under any other law for the time being in force; or

(c) the applicant has refused to allow the inspector or the representative of the State Board authorised in writing, free and unimpeded access to his facilities; or

(d) the applicant was operating a pet shop without a valid certificate of registration, and failed to apply for the same resulting in sealing of his shop.

(10) Where the State Board does not permit the registration of pet shop, the State Board shall inform the applicant in writing the reasons thereof within thirty days from the date of receipt of inspection report by the State Board.

(11) A certificate of registration issued by the State Board shall be valid for a period of five years, and may be renewed upon an application being made to the State Board together with a fee of five thousand rupees.

(12) A certificate of registration issued under these rules shall be non-transferable.

(13) Notwithstanding anything in these rules, the following persons shall not require a license under these rules, namely:—

- (a) an animal shelter operated by or on behalf of a local authority, or an Animal Welfare Organisation registered with the Board;
- (b) any other facility or establishment that operates for the welfare of animals, and is not engaged in commercial activity such as sale and purchase of animals;
- (c) an establishment registered with the Committee for the Purpose of Control and Supervision of Experiments on Animals (CPCSEA), and coming under the purview of the Breeding of and Experiments on Animals (Control and Supervision) Rules 1998 as amended from time to time for the purpose of experiments, breeding and trading of animals, and shall be exempted from these rules.

5. Renewal of registration.—An application for renewal of registration of pet shop shall be made, at least thirty days prior to the expiry of the registration, to the State Board in the Form-I and the provisions of rule 4 shall *mutatis mutandi* apply.

6. Accommodation, infrastructure and housing.—(1) A pet shop shall be located within a permanent structure or building, with adequate arrangement for basic amenities such as water and electricity, and adequate power back up.

(2) No person shall be allowed to operate a pet shop on a shanty, shack, pavement or any temporary or make shift arrangement.

(3) The enclosures or rooms or aviaries in a pet shop in which the pet animals for sale are displayed or housed shall be of adequate size and space as set out in the Second Schedule, so as to permit—

(a) the pet animal housed therein to stand, sit, lie down, turn around, stretch and make other normal postural adjustments without obstruction, interference or impediment occasioned by paucity of space;

(b) the birds within to fly, hop, jump, climb and otherwise move about, and individually spread their wings, and perch in normal position without obstruction, interference or impediment occasioned by paucity of space, and the water birds shall be provided water troughs to wallow.

(4) The floor of the enclosure or room for displaying or housing pet animals for sale shall be constructed such that no injury to the animals' feet, or legs, or any other injury is caused to them, however, wherever mesh floors are used, a tray shall be provided to avoid any organic matter falling into the cages below in case of stacking.

(5) The temperature at the enclosures or rooms or aviaries in which pet animals are displayed or housed for sale shall be comfortable, which may vary from animal to animal, and from breed to breed, and it shall be incumbent upon the pet shop owner to familiarise himself with the requirements of the breeds or species that he intends to deal in, and provide ambient and comfortable temperature for them.

(6) Every pet shop owner shall provide in the pet shop and particularly, in the enclosures or rooms or aviaries in which the pet animals are displayed or housed for sale, suitable drainage or a way to quickly eliminate waste and water when cleaning.

(7) Every pet shop displaying or housing pet animals for sale shall—

(a) be adequately ventilated and a low noise exhaust fan or system shall be installed;

(b) be free from noise pollution, and shall not be adjacent to areas where loud noises can be heard, or noxious fumes and odors emitted, including factories and other similar industrial establishments;

(c) not be located within the vicinity of hundred meters from butcher shops, or butcheries, or abattoirs, and entry of other animals that may disturb or harm the pet animals housed or exhibited for sale in pet shops shall not be allowed;

(d) install and make smoke-detection and fire-fighting equipment available and ready for use at the pet shop; and

(e) have an isolated or quarantine area where pet animals infected with a contagious disease or suspected of being infected can be segregated from the rest of the animals intended for sale.

7. General care of animals, veterinary care and other operational requirements.—

(1) Every pet shop owner shall ensure that pet animals are at all times displayed or housed for sale in accommodation and environment suitable to their species with respect to situation, size, temperature, lighting, ventilation and cleanliness, and other similar standards and no pet animals or birds shall be on display, or displayed outside pet shops, or in show windows.

(2) Every pet shop owner shall ensure that—

(a) sufficient food of a type consistent with the dietary requirements and age of the pet animals intended for sale is provided to them;

(b) clean drinking water is available to the pet animals intended for sale at all times;

(c) vessels used for feeding and watering of pet animals are kept clean and free from contamination of excrement or urine;

(d) the enclosures or rooms or aviaries in which pet animals for sale are displayed or housed are cleaned daily or more often, if found to be soiled by excrement or other waste, and disinfected frequently to preclude the possibility of outbreak of disease;

(e) where accommodation is on a tiered system, water, food or other droppings are not allowed to enter the lower housing;

(f) food wastes, animal excreta, used bedding, debris and any other organic wastes are removed daily, or more frequently, from the animal enclosures;

(g) aviaries are cleaned daily, or more frequently, to prevent buildup of bird wastes and uneaten food;

(h) the enclosures or rooms or aviaries in which pet animals for sale are displayed or housed are such as enable them to move about freely, or rest comfortably, and the pet animals requiring bedding material are provided the same, and no feed is allowed to mix in the bedding;

(i) all pet animals displayed or housed in the same enclosure are of the same species and age group and are grouped in a manner that precludes mating or bullying and fighting;

(j) pet animals that are inimical to each other are not displayed or housed in abutting enclosures, and dogs and cats are not kept adjacent to each other, and birds, rabbits, guinea pigs, hamsters, and rodents are not kept adjacent to dogs and cats, since the same can cause acute stress;

(k) only healthy pet animals, certified in writing by a veterinary practitioner as being so, are offered for sale at the pet shop; and

(l) pet animals for sale are not left in the pet shop at night without sufficient number of attendants to attend to them.

(3) A pet shop shall not display or house pregnant animals or mothers caring for un-weaned young for sale or offer them for sale.

(4) No pet shop shall sell any animal intended to be used for food, skin or accessories except insects or some species of animals that are not used for human consumption but used as food for other animals.

(5) Every pet shop owner shall—

(a) employ only such persons as are trained for handling or taking care of pet animals, and shall not employ any person who is of unsound mind or displaying signs of aggressive or abnormal behavior or whose temperament does not seem suited for working with animals; and

(b) have sufficient dedicated staff at the pet shop to take care of, and attend to pet animals properly.

(6) Every pet shop owner shall make provision for veterinary care, including emergency medical care, and display at a conspicuous place in the pet shop the emergency contact information of the veterinary practitioner so as to allow the employees and customers access to the veterinary practitioner, with their concerns regarding the health of the pet animals at the facility.

(7) The pet shop owner shall immediately report the outbreak or suspected outbreak of any zoonotic or contagious disease or infection to the local authority, the SPCA, the State Board and the State Government Department responsible for Animal Husbandry.

(8) Every pet shop owner shall provide at least one room or enclosure for quarantining sick or diseased pet animals, or pet animals suspected to be sick or diseased, or segregating newly acquired pet animals and ensure that—

(a) quarantined sick or diseased pet animals are not kept together with newly acquired pet animals;

(b) the quarantine or isolation facility is cleaned and disinfected thoroughly after quarantined or isolated pet animals have been removed from the same, and prior to the placement of additional pet animals into the room or enclosure; and

(c) the equipment and vessels used at the quarantine or isolation facility are kept separate and distinct.

(9) Every pet shop owner shall ensure that any pet animal that becomes incurably sick or terminally ill or mortally wounded is euthanised by a veterinary practitioner in the manner specified by the Veterinary Council of India, and maintain a record of such cases and report such instances to the State Board.

(10) Every pet shop shall have arrangement to dispose-off carcasses of pet animals that die at the facility, and dead animals shall be removed at the earliest from the sight of other pet animals.

(11) Every pet shop owner shall prominently display at the pet shop, the license granted to him for operating the facility.

(12) The species and numbers of pet animals, and the prices for which they are offered for sale shall be prominently displayed at the pet shop.

(13) Receipts shall be issued for every pet animal sold in Form IV and a copy of each receipt shall be retained at the pet shop.

(14) No pet shop shall sell pet animals with any form of mutilation, however, necessary curative surgery shall be exempted based on the prescription of the veterinarian.

(15) No pet shop shall sell un-weaned or underage animals or birds.

(16) Every puppy shall be micro-chipped by a veterinary practitioner, and each pet shop shall have a functional micro-chip reader within the premises and it is a requirement of these rules that only micro-chipped puppies shall be sold.

(17) Every pet shop owner shall have in place an appropriate written exercise plan for pups over sixteen weeks of age and for different species of animals, signed and certified by a veterinary practitioner, and ensure that the same is strictly adhered to.

(18) Every pet shop owner shall make efforts to ensure the adoption or re-homing of any pet animal that has not found a buyer despite three months having elapsed since it was first displayed for sale at the pet shop:

Provided that all particulars of adoption or re-homing of unsold animals shall be entered in a register to be kept at the pet shop:

Provided further that the pet shop owner shall not abandon or discard un-sold pet animal on to the streets or otherwise.

(19) If the pet shop owner intends to provide grooming services, the same shall be specifically mentioned in the application for grant of license, and the grooming area shall be physically separated from primary animal enclosures and animal food storage areas.

(20) Any and all items intended for sale, whether retail or whole-sale, including pet products and accessories, shall not be stored or displayed for sale in the animal areas within a pet shop.

(21) Every pet shop owner shall make available to customers free of charge at the time of purchase, pet care leaflets or other similar written instructions regarding the degree and manner of care, and regarding traits and behavioral patterns of the pet animal being purchased.

(22) No pet shop shall sell any pet animal to a person who has not attained the age of majority.

(23) Every pet shop owner and any person involved in the pet trade shall ensure that they provide the maximum care in the housing, upkeep and maintenance of the animals under their care and in their custody, and take all necessary precautions to protect them against fire, accidents, attacks from other animals, or other dangerous occurrences.

(24) Every pet shop owner shall engage a veterinary practitioner to check each animal in the pet shop and give a certificate of fitness once in every month or at anytime as informed by the pet shop owner on noticing any symptom of illness.

(25) No pet shop shall sell any pet animal acquired from a breeder unless the breeder is registered as required by the relevant rules in force.

(26) Adequate measures shall be taken by the pet shop owner to maintain health records including details of vaccination.

8. Maintenance of records.—(1) Every pet shop owner shall maintain in a record book in Form V, the particulars of breeders and suppliers of pet animals intended for sale, including name, address, contact details, and date of transaction, and the number of pet animals received, their breed or species, and bird band number if applicable.

(2) The pet shop owner shall maintain a record in Form VI of customers buying pet animals from him in a record book, with names, addresses, contact details, and the details of pet animal purchased, and the price at which purchased, and the receipt issued.

(3) Every pet shop owner shall maintain a record in Form VII of the pet animals that die at the pet shop, with the day, date and time of death, and cause of death certified by a veterinary practitioner, and details of the medical attention and care provided to the deceased pet animal prior to its death certified in writing by a veterinary practitioner, and manner of disposal of carcasses.

(4) Every pet shop owner shall maintain a separate record in Form VIII of the incurably sick or terminally ill or mortally wounded pet animals that are euthanised, with the day, date and time of death, and cause of death certified by a veterinary practitioner, and details of the medical attention and care provided to the deceased pet animal prior to its death, and manner of disposal of carcasses.

(5) The records maintained under this rule shall be available at the pet shop for inspection by the State Board or any intending purchaser.

9. Non-compliance with these rules.—(1) The State Board may, upon receipt of a written complaint or otherwise, inquire into or get the complaint inquired into in writing by the local authority or SPCA in order to establish the non-compliance of these rules by the pet shop owners.

(2) If during an inspection, a pet animal is suspected to be sick or experiencing any kind of distress then the inspector or any person, authorised by the State Board in writing to give a certificate of ill health may require the pet shop owner to provide medical attention to the sick animal and require the pet owner to submit health report within seven days post the inspection date, and after seven days, if the authorised inspector or person is not satisfied with the progress in the matter, he shall confiscate the pet animal, and remove it for treatment and care to a shelter house run by an Animal Welfare Organisation registered with Board having appropriate housing facility, after recording in writing the reasons why such action is necessitated, and giving a copy of the reasons so recorded to the pet shop owner and the Animal Welfare Organisation.

(3) The expenses incurred for treating and attending to the pet animal under sub-rule (2) shall be borne by the pet shop owner, and the Animal Welfare Organisation shall return the animal to the pet shop owner after the pet animal has recovered fully, and the expense for its treatment and the care provided has been reimbursed to the Animal Welfare Organisation.

(4) The pet shop owner shall not, in the event of removal of a sick or otherwise distressed pet animal under this rule, be entitled to claim any compensation whatsoever, from the State Board or the Animal Welfare Organisation.

(5) If any other violation of the requirements of these rules is discovered during an inspection of a pet shop by the inspector or person referred to in sub-rule (2), the State Board shall issue a notice to the pet shop owner to show cause within fifteen days of receipt of the notice, why his registration be not cancelled.

(6) The State Board may, if it is not satisfied with the response of the pet shop owner, or if no response is received, cancel the registration and communicate the reasons thereof in writing to the pet shop owner.

(7) The pet shop, the registration of which has been cancelled, shall not be sealed by the State Board—

(a) until the period for making appeal against such cancellation has expired; and

(b) in case where an appeal has been preferred and is pending, until the disposal of the appeal.

(8) Where the appeal has been rejected, the State Board may seal the shop, and confiscate the animals displayed or housed for sale and the confiscated animals shall then be dealt with in the manner set out in rule 3.

10. Inspection of establishment.—(1) The State Board may, either upon receipt of a complaint or for any other reason, cause any pet shop to be inspected by an inspector authorised in writing by it in this behalf.

(2) The inspector so authorised under sub-rule (1) shall, on producing his authority, have power to—

(a) enter into the pet shop at any reasonable time and access to all areas within the establishment and all animals, and records, to ascertain whether the requirements of these rules are being complied with;

(b) take pictures, record videos and make copies of the records.

(3) A pet shop registered under these rules shall be inspected at least once every year.

(4) The inspector shall submit to the State Board a report in writing of the inspection.

(5) If the State Board, after considering the report, is of the opinion that any requirements of these rules are contravened by the pet shop owner, it may, after giving a copy of the report to the pet shop owner and an opportunity to show cause, cancel the registration of the pet shop and communicate the reasons thereof in writing to the pet shop owner.

11. Appeal.—(1) Any pet shop owner aggrieved by the decision of the SPCA or State Board may, within thirty days of receipt of the decision, prefer an appeal before the State Board against the decision of SPCA or Secretary, Animal Husbandry, State Government against the decision of State Board.

(2) The State Board or Secretary, Animal Husbandry, State Government, as the case may be, shall after giving notice to the pet shop owner and SPCA or the State Board as the case may be, and giving an opportunity of hearing to the parties, either reject or allow the appeal, for the reasons to be recorded in writing and communicated to the pet shop owner and SPCA or the State Board as the case may be.

12. Reports by pet shop.—(1) Every pet shop registered under these rules shall,—

(a) submit at the end of every year, a report to the State Board, consisting of the information as to the total number of animals sold, traded, bartered, brokered, given away, boarded, exhibited, died or euthanised, during the previous year;

(b) provide to the State Board, such information as may be required by the State Board, as the case may be from time to time.

(2) the State Board shall send a consolidated report at the end of every year to the Board consisting of the information as to the total number of animals sold, traded, bartered, brokered, given away, boarded or exhibited during the previous year and any such other information as may be required by the Board, as the case may be, from time to time.

13. Effect of death of owner of pet shop registered under these rules.—In the case the owner of a pet shop registered under these rules dies before the expiry of the period of registration, the registration in respect of the pet shop shall be deemed to have been granted to his legal heirs in respect of that pet shop and shall remain valid till the end of a period of three months from the date of death of the owner and thereafter a fresh application for registration of the pet shop shall be made in accordance with these rules for continuing the pet shop.

14. No license without registration.—No pet shop shall be granted a license by the local authority, unless the pet shop has obtained a certificate of registration from the State Board in accordance with these rules.

15. Import of birds and animals.—Pet shop owner shall ensure that the suppliers who supply imported, exotic breeds of birds and animals are importing these animals after obtaining all necessary approvals or license or both from the Director General of Foreign Trade, Sanitary Import Permit and Permission from Regional or State Animal Quarantine and Certification Services, and the pet shop owner shall satisfy himself that the imports of live animals have been done through legal and appropriate channels.

16. Management of revenue received from pet shops.—The revenue received from the pet shops as registration and renewal fee shall be managed by the State Board for running their activities for enforcing these rules.

17. Delegation of powers.—The State Board may, by an order in writing, delegate any of its powers and functions under these rules (except under rules 11 and 12) to the Society for Prevention of Cruelty to Animals (SPCA).

THE FIRST SCHEDULE

FORM-I

[See rules 4(2) and 5]

APPLICATION FORM FOR REGISTRATION/RENEWAL

To

The State Animal Welfare Board

----- (name of the district and State)

Subject : Application for grant of license for Pet Shop

Sir,

I/We ----- r/o----- with office address -----
-----, do hereby apply for registration to operate/continue operating a pet shop,
the particulars of which are set out below:—

1. Name and address of the pet shop:
2. Name and address of pet shop owner:
3. Telephone number (landline and mobile):
4. Details of accommodation and infrastructure available at proposed pet shop with photographs:
5. Working hours and rest day, i.e. day on which shop shall remain closed:
6. Ventilation arrangement:
7. Lighting arrangement:
8. Smoke-detection and fire fighting arrangement:
9. Heating or cooling arrangement, and manner in which comfortable temperature will be maintained for all pet animals:
10. Power back-up arrangement:
11. Arrangements for food storage:
12. Cleanliness, how proposed to be maintained, and arrangements for removal of animal excreta and waste:
13. Arrangement for disposal of animals that die:
14. Arrangement for medical and veterinary support:
15. Details of pet animals proposed to be displayed or housed in the pet shop for sale:
16. Details of cheque or demand draft number for payment of fee:

(ADDITIONAL INFORMATION PERTAINING TO THE FULL RECORDS OF THE PRECEDING YEAR TO BE PROVIDED IN APPLICATIONS FOR RENEWAL OF REGISTRATION)

17. Species and breeds of pet animals available for sale, and price at which offered for sale:
18. Age of each pet animal available for sale:
19. Records from the previous year of number of animals sold, prices at which sold, copies of receipts issued, animal deaths and all other records required by the Prevention of Cruelty to Animals (Pet Shop) Rules, 2018 these rules to be maintained:
20. Audited balance sheets and profit and loss accounts:

I/We do hereby declare that the information provided herein is accurate and true.

Place:
Date:

Signature of Applicant

Form II

[See Rules 3(1) and 4(5)]

Certificate of Registration of Pet Shop

1. Certificate of Registration is granted to (name and address of applicant) to establish a pet shop as provided in the Prevention of Cruelty to Animals (Pet Shop) Rules, 2018.
2. The location of the pet shop is at
3. The owner of pet shop is permitted to deal with the following pet animals
4. The owner of pet shop shall abide by the provisions of the Prevention of Cruelty to Animals Act, 1960 and the rules and notifications made and issued thereunder.
5. The owner of the pet shop shall submit annual report in compliance with clause (a) of sub-rule(1) of rule 12 of the aforesaid rules for the year ending the 31st December to reach the undersigned before the 31st January of the succeeding year.
6. The Certificate shall be displayed prominently in the pet shop.
7. The Certificate is non-transferable.
8. The Certificate shall be valid up to five years from the date of issue of this Certificate and renewal application should be submitted thirty days prior to the expiry date.

Date:

Signature and Seal of

State Animal Welfare Board

Form III

[See rule 4(5)]

Register of Certificates of Registration issued to Pet Shops

Sl. No.	Name and address of applicant	Type of pet animals permitted to be sold
1	2	3

Date of Registration	Name of Local Authority	Remarks
4	5	6

Form IV

[See Rule 7(13)]

Receipt for Pet Animals sold

1. Name of the pet shop :
2. Number and date of Certificate of Registration :
3. Type of pet animal sold :
 - (a) Category
 - (b) Common name:
 - (c) Technical name:
 - (d) Breed:
 - (e) Age :
 - (f) Vaccination details:
4. Sale amount:
5. Name and address of purchaser :
6. Contact number of purchaser:

Place:

Signature of pet shop Owner

Date:

Stamp/Seal

Note: The above Certificate shall be in duplicate, the original to be given to the Purchaser and duplicate to be retained in the Pet Shop.

Form V

[See rule 8(1)]

Register of breeders and suppliers of pet animals

Sl. No.	Name and address of Breeder/Supplier	Contact number and e-mail	Date of transaction
1	2	3	4

Description of pet animal	Age of animal	Vaccination details	Remarks
5	6	7	8

Form VI

[See rule 8(2)]

Register of sale of pet animals

Sl. No.	Name and address of purchaser	Contact number	Sale amount
1	2	3	4

Type of pet animal sold						Remarks
Category	Common name	Technical name	Breed	Age	Vaccination	
5	6	7	8	9	10	11

Form VII

[See rule 8(3)]

Register of pet animals that die in pet shop

Sl. No.	Name and description of animal	Date and time of death of animal	Age
1	2	3	4

Cause of death	Medical treatment provided	How dead animal was disposed	Remarks
5	6	7	8

Form VIII

[See rule 8(4)]

**Register of details of pet animals which are incurably sick/
terminally ill mortally wounded**

Sl. No.	Date on which animal was incurably sick/terminally ill/mortally wounded	Name and description of animal	Age
1	2	3	4

Time of death	Cause of death	Medical attention provided	How dead animal were disposed	Remarks
5	6	7	8	9

THE SECOND SCHEDULE

[See rule 6(3)]

MINIMUM SPACE REQUIREMENTS**1. FOR BIRDS.—**

- (a) Birds shall be housed in large and spacious aviaries.
- (b) The aviaries shall be large enough to allow each bird full body extension, and wide enough to accommodate the fully stretched wings of all, and allow easy hopping, jumping, climbing and flight within the aviary.
- (c) Well-placed perches shall be provided within each aviary where the birds can stand upright without having head contact with any ceiling, and tail contact with the floor or grate, and for species such as finches and canaries that prefer flying or jumping to climbing, perches shall be positioned in a manner that allows the same.
- (d) Perches shall be strategically placed so as to prevent droppings from contaminating food and water vessels.
- (e) Birds that live in social groupings and are housed as such must have wooden nesting boxes constructed within the aviaries.

2. FOR CATS.—

- (a) The floor of the open enclosure or pen shall have a solid surface and should be large enough to enable all the occupants to exercise free movement and play.
- (b) Elevated resting surfaces must be provided for cats.
- (c) Matting must be provided.
- (d) Soft and clean play toys must be provided within the enclosure.
- (e) The space taken by the litter box shall not be included in the calculation of the total area.
- (f) Cats or kittens shall be kept in a room which is not shared by other, inimical animal species such as dogs.

3. FOR DOGS.—

Area (square feet)	Number of Animals		
	Small	Medium	Large
	(1-10 pound)	(11-20 pound)	(21-30 pound)
24	3	2	1
48	6	3	2
72	10	4	3

- (a) The floor of the open enclosure or pen shall have a solid surface and shall be large enough to enable all occupants to exercise free movement and play.
- (b) The height of the enclosure or pen shall be such that the dog or pup cannot escape.
- (c) Minimum height and space requirements for dogs weighing over thirty pounds shall be determined on an individual basis and shall be larger than the height and space specified above.

4. FOR RABBITS.—

Area (square feet)	Number of Animals		
	Small (less than 2 pound) expand)	Medium (2-4 pound)	Large (5-12 pound)
5	4	2	0
10	8	4	1
15	12	6	2

- (a) The minimum height of the primary enclosure shall be 48 inches.
- (b) The floor of the rabbit's primary enclosure shall never be wire mesh, steel or shavings and it shall be solid surface such as tile, board, good quality linoleum, untreated straw mats or acrylic non slip surface with arrangement for digging, chewing and playing.
- (c) Rabbits shall be kept in a room which is not shared by other, inimical animal species such as cats and dogs.

(5) FOR GUINEA PIGS.—

Area (square feet)	Number of Animals	
	Young (less than 350 grams)	Adult (above 350 grams)
5	5	2
10	10	4
15	15	6

- (a) The minimum height of the primary enclosure shall be 36 inches.
- (b) The floor of the guinea pigs' primary enclosure shall never be wire mesh, steel or shavings and it shall be solid surface such as tile, board, good quality linoleum, untreated straw mats or acrylic non slip surface.
- (c) Guinea pigs shall not be kept adjacent to other inimical animal species such as cats and dogs.

6. FOR HAMSTERS.—

- (a) The area to be provided for each hamster must not be less than 1.5 square feet.
- (b) The minimum height of the primary enclosure shall be 36 inches for dwarf species. For all other hamsters species, the minimum height of the primary enclosure shall be 48 inches.
- (c) Hamsters and gerbils shall only be housed in primary enclosures with solid floor such as tile, board, good quality linoleum, untreated straw mats or acrylic non slip surface and the floor of the hamster's primary enclosure shall never be wire mesh, steel or shavings.
- (d) They shall not be kept adjacent to other inimical animal species such as cats and dogs.

7. FOR RATS.—

- (a) The area to be provided for each rat shall not be less than 1.0 square foot.
- (b) The minimum height of the primary enclosure shall be 8 inches.
- (c) Rats shall only be housed in primary enclosures with mesh and have a mesh floor or wood shavings.
- (d) Minimum height and space requirements for rats over 500 grams in weight will be determined on an individual basis and shall be larger than the height and space specified above.
- (e) Rats shall not be kept adjacent to other inimical animal species such as cats and dogs.

8. FOR MICE.—

- (a) The area provided for each mouse shall not be less than 1 square foot.
- (b) The minimum height of the primary enclosure shall be 6 inches.
- (c) Mice shall only be housed in primary enclosures with solid floor such as tile, board, good quality linoleum, untreated straw mats or acrylic non slip surface and the floor of their enclosure shall never be wire mesh, steel or shavings.
- (d) Mice shall not be kept adjacent to other inimical animal species such as cats and dogs.

[F.No.1/1/2010-AWD (Pt)]
MANJU PANDEY, Jt. Secy.